



SPONSOR: Rep. Romer & Sen. Hoffner
Reps. Collins, Jones Giltner, Ortega, Ross Levin; Sens.
Huxtable, Pettyjohn, Poore, Richardson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 287

AN ACT TO AMEND TITLE 4 AND TITLE 29 OF THE DELAWARE CODE RELATING TO THE JOINT
LEGISLATIVE OVERSIGHT AND SUNSET COMMITTEE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 303, Title 4 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 303. Employees.

4 Necessary staff as required shall be employed as required to carry out the work under the chapter. After December
5 1, 2001, the Joint Legislative Oversight ~~and Sunset~~ Committee will review the duties and responsibilities of the
6 Commissioner to determine if additional staff, including hearing officer or officers, is necessary. The Department of State
7 shall provide personnel services and other necessary support services for the office of the Commissioner and the Appeals
8 Commission.

9 Section 2. Amend § 710, Title 29 of the Delaware Code by making deletions as shown by strike through and
10 insertions as shown by underline as follows:

11 § 710. Compensation of Lieutenant Governor and members of General Assembly.

12 (c) A member of the Senate or the House of Representatives who is elected or appointed to any of the following
13 positions is to receive, while serving in the position, additional yearly compensation as follows:

14 (11) Chair and Vice Chair of the Joint Legislative Oversight ~~and Sunset~~ Committee, \$4,670.

15 (12) Members of the Joint Legislative Oversight ~~and Sunset~~ Committee, \$3,929.

16 Section 3. Amend § 910, Title 29 of the Delaware Code by making deletions as shown by strike through and
17 insertions as shown by underline as follows:

18 § 910. Consideration of agency rules during legislative interim.

19 (c) Each joint committee shall have the power, by a majority vote of its members, to draft a committee report
20 setting forth its suggestions and recommendations, and to request the President Pro Tempore of the Senate or the Speaker of
21 the House to call a special session to consider committee recommendations. Each joint committee shall provide its
22 committee report to the Joint Legislative Oversight ~~and Sunset~~ Committee.

Section 4. Amend § 10004, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 10004. Open meetings.

(h) This section shall not apply to the proceedings of:

(7) Public bodies within the legislative branch of the state government other than the House of Representatives, the Senate, the Joint Finance Committee, the Joint Committee on Capital Improvement, the Joint Legislative Oversight ~~and Sunset~~ Committee, Legislative Council, Legislative Hall Art and History Advisory Commission, committees, excluding ethics committees, specifically enumerated and created by Resolution of the House of Representatives or Senate or task forces specifically enumerated and created by Resolution of the House of Representatives or Senate;

Section 5. Amend Chapter 102, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

Chapter 102. DELAWARE JOINT LEGISLATIVE OVERSIGHT AND SUNSET ACT. COMMITTEE.

Section 6. Amend § 10201, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 10201. Definitions.

As used in this chapter:

(1) "Committee" means the Joint Legislative Oversight ~~and Sunset~~ Committee established by this chapter.

Section 7. Amend § 10203, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 10203. Committee composition; chair and vice chair; appointment; quorum; reimbursement; hearings.

(a) The Joint Legislative Oversight ~~and Sunset~~ Committee is composed of 5 members of the Senate appointed by the President Pro Tempore and 5 members of the House of Representatives appointed by the Speaker of the House of Representatives.

Section 8. Amend § 8735, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 8735. Division of Professional Regulation.

(d) The Division of Professional Regulation shall have the following powers, duties, and functions relating to the administration of examinations for all boards, commissions, and other agencies listed in this section:

52 (5) Review and approve, subject to review by the Joint Legislative Oversight ~~and Sunset~~ Committee, the
53 content and validity of any examination written, developed, or used by a board or commission listed in this section;

SYNOPSIS

This Act changes the name of the Joint Legislative Oversight and Sunset Committee to "the Joint Legislative Oversight Committee."

When the Committee was first codified in 1980, it was named the "the Joint Sunset Committee." In 2016, the Committee voted to change its name to "the Joint Legislative Oversight and Sunset Committee." The Committee had "sunsetting" only 2 reviewed entities up to that point. Because "sunsetting" was only one of the Committee's many functions and used the function rarely, its name had grown confusing to the public. Adding "Legislative Oversight" more fully represented the Committee's purpose.

Over the last 7 years, the Committee has reviewed 40 entities and "sunsetting" only 6 of them. In January 2026, the Committee voted to update its name to more accurately reflect its evolved purpose. Like most similar committees in other states, Delaware's committee has significantly downsized its focus on the "sunsetting" process in favor of conducting oversight and performance evaluation. This Act does not eliminate or lessen the Committee's authority to "sunset" an entity when a review demonstrates that doing so is the best outcome, and this Act does not amend the Committee's overall authority, focus, or purpose.

This Act also makes a technical correction to the title of Chapter 102, Title 29.